



U.S. DEPARTMENT of STATE

PRIVILEGED INSTRUCTIONS

UNITED STATES OF AMERICA



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Privileged Instructions

Fundamental Principles

- Establishment of peace, stability and security on the Korean Peninsula.
- North Korea must become a responsible, nonthreatening, independent nation; or work in good faith with South Korea to reunify the Korean peninsula as a single Korean nation.

Desired End States

- The irreversible denuclearization of North Korea.
- Termination and elimination of the DPRK's long-range ballistic missile program.
- Reduction of the DPRK's military-industrial complex to levels commensurate with normal, non-nuclear, self-defense needs.
- Implementation of reforms that reduce the DPRK military's dominant influence within the government to a position proportionate with that of most modern nations.
- The DPRK in complete compliance with international norms, and good faith integration into international organizations and multinational agreements and treaties.
- A North Korean state that can be trusted to adhere to both the spirit and substance of all agreements.
- The establishment of peace treaty between our nation, South and North Korea to formally end the Korean War.
- A DPRK open to normal economic trade and investment for the betterment of the North Korean people.
- A resumption of inter-Korean talks aimed at the eventual reunification of the peninsula as a single, strong Korean nation.

Principle Negotiation Positions

- BAD BEHAVIOR WILL NOT BE REWARDED.
- Throughout this process we will maintain our joint positions with South Korea and Japan, in that the DPRK must agree to resolve all issues and implement those resolutions within the confines of a comprehensive agreement, prior to any actions being taken to relieve sanctions or provide any, but the most urgent, humanitarian aid.
- Pyongyang has proven time after time to be a completely unreliable negotiating partner and therefore confidence-building is an essential first step in the renewal of talks.

- While we can advocate a return to the tenets of the 2005 Joint Resolution as a foundation for further negotiations, we cannot be tied to what had been a failed attempt if there is no immediate, substantial, and sustained progress.
- North Korea must negotiate in good faith and ensure its positions, all compromises or changes or adjustments to those positions, and any, and all agreements entered are fully supported by all sectors of its government, especially by the military.
- North Korea must cease all acts of military brinkmanship. This will not be tolerated, and any such acts may cause our nation to suspend its support of, and participation in, this or any other diplomatic process to include any inter-Korean talks. The current level of JP-ROK-U.S. military exercises, and THAAD, will be retained and sustained as long as the North's nuclear weapons and ballistic missile programs continue to exist.
- A monitored and verified end of all North Korean proliferation activities, to include nuclear, ballistic missile, chemical and cyber capabilities, technologies and expertise.
- There can be no provision of humanitarian assistance or sanctions relief until Pyongyang has agreed to and completed the verifiable implementation of a comprehensive package agreement covering all issues identified in these talks, to include an internationally monitored shutdown and irreversible disablement of its nuclear program along with the verified termination of its medium and long-range ballistic missile programs.
- If the atmosphere improves considerably, at an appropriate time, Pyongyang, Seoul and Washington will start separate negotiations on a peace treaty to formally end the Korean War.
- We can support a return to Inter-Korea dialogue between North and South Korea at appropriate time.

Red Flags

- Any bad behavior on the part of the North Korean government.
- Movement away from a comprehensive agreement without the establishment of a satisfactory alternative plan.
- Any indication that North Korea would be allowed to maintain any part of its nuclear program or ballistic missile systems.

Delegation Instructions

Ensure periodic reports, requests for further guidance, or clarifications to the instructions herein are submitted via message to the office of the Foreign Minister.

We seek a stable Korean peninsula and a stable, prosperous, and responsible North Korean nation that works in harmony with the world. The DPRK should never be allowed to retain possession of a nuclear program of any type, or to possess an offensive ballistic missile capability. To that end, we will work in unison with our ROK and Japanese allies to ensure that these capabilities are terminated in a peaceful manner through a negotiated agreement as part of a comprehensive agreement with North Korea.

Work with the South Korean and Japanese delegations to maintain our joint position on the need for a comprehensive agreement covering all issues cited in the Chairman's Framework for the Six-Party Talks. If this approach shows no promise, or progress, it should not be allowed to compromise or interfere with our joint positions on the immediate need to abolish the DPRK's nuclear weapons and ballistic missile programs.

North Korea must rein in its military and cease any, and all, provocative acts. These acts are used to sabotage and destroy confidence-building efforts that are essential to these talks by not allowing them to continue and progress.

With regards confidence-building, we should propose that our delegates, and those from Pyongyang, resume some type of dialogue, either within these talks or separately, without preconditions. This will rebuild trust between the two nations, and by extension within the region, internationally, and especially within these talks. The same applies to bilateral talks between the South Korean and North Korean delegations. As the above language suggests, these talks should be uncoupled from the Six-Party Talks and remain separate from them as much as possible. If these talks progress, addressing a peace declaration followed by a peace treaty, it would be permitted, if the North does not use them as a pretense to attempt to erode the U.S.-ROK alliance.

Regarding China's 'mutual freeze' proposal – the suspension of ROK-U.S. training exercises in exchange for the North halting progress on its nuclear and missile programs – we cannot and will not support such an action. We see a freeze of the North's nuclear program as potentially unverifiable, locking in the capabilities that Pyongyang has already achieved. This would do nothing to lessen the present North Korean threat. Freezing, or in essence, cancelling ROK-U.S. training and exercises for an undetermined period will substantially degrade necessary command coordination and military preparation and readiness essential for the defense of our nation. A freeze will not be the neutral event Beijing claims, but one that would work in favor of the DPRK.

Not only must the North's nuclear weapon and ballistic missile programs be disabled and terminated, but an agreement on nonproliferation must be part of the comprehensive agreement. If this is not done, and enforced, it is likely that the North will continue to sell material and knowledge to other nations and/or groups looking to build their own nuclear capability. This cannot be allowed to continue.

An additional set of issues, not currently outlined in the Chairman's Framework, but which must be addressed, is to end the North's chemical and cyber warfare capabilities. Unlike the nuclear and missile programs, where testing and capability demonstrations are as they have taken those programs, Pyongyang has supplied chemical weapons, or their components, to countries that have used them against their own people (Syria), and even used VX nerve agent to assassinate Kim Jong-un's half-brother. Over the past several years, Pyongyang has employed its offense cyber capabilities to attack vulnerable targets around the world. These acts alone justify the continued condemnation of North Korea as a pariah nation, and more than justify demands that these capabilities be eliminated and the Kim regime held accountable by the International Court of Justice. Therefore, these additional threats need to be addressed.

While we have little interest in returning to the provision of Light Water Reactors (LWRs) to North Korea within the tenets of the old Agreed Framework, we will not oppose this line of discussion. You should strongly indicate that the DPRK has done nothing to establish itself as a trusted partner, and therefore this may end up being a dead end. If pursued, this is best done in accordance with the previous agreements through the reestablishment of the Korean Energy Development Organization (KEDO), but with the additional caveat that the North will not have access to these reactors. To support this, the DPRK must agree to return to and abide by the Nuclear Nonproliferation Treaty (NPT) as a Non-Nuclear Weapons State (NNWS) in good standing and be accepted back into the International Atomic Energy Agency (IAEA) and accept without conditions all Agency monitoring and inspections. As a preferred alternative to this, we invite Russia and China to provide adequate electrical power to the DPRK, either through direct transmission, or through the construction of conventional power plants, along with needed rehabilitation of the North's power transmission infrastructure.

Lastly, while our nation and South Korea do not share the deep animus that Japan feels regarding the abduction of its citizens by the DPRK in the 1970s and 1980s, we have more than enough reason to sympathize with its position on this issue. However, if Japan remains insistent that this issue must be addressed, we will lend support to Tokyo's arguments while also pushing both Pyongyang and Tokyo to conduct separate bilateral talks regarding this issue.